

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 15-11

IGOR OVCHINNIKOV, IRINA RZAEVA, and DENIS NEKIPELOV,

— vs. —

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

INFORMAL DOCKET NO.: 1953(I)

KAIRAT NURGAZINOV,

— vs. —

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

COMPLAINANTS' STATUS REPORT

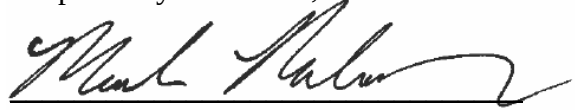
Complainants herein submit this Status Report to make the Presiding Officer aware of the following:

On September 9, 2016 at approximately 1:17 p.m.; by virtue of an email exchange, copies of which are attached hereto; and due to a deteriorating relationship between counsel for the parties hereto, it was mutually agreed that the parties by their counsel, inclusive of respondents' "coordinating counsel", Mr. Werner that said counsel shall cease, desist and refrain from emailing each other directly; and that all further necessary communications in this matter be sent solely and exclusively through the Office of the Secretary.

We regret any undue burden that the foregoing may place upon the Office of the Secretary or the Presiding Officer.

Dated: September 9, 2016
Brooklyn, New York

Respectfully Submitted,

A handwritten signature in black ink, appearing to read "Marcus A. Nussbaum", written over a horizontal line.

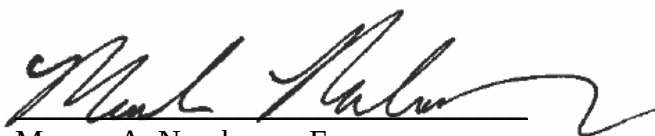
Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
Attorney for Complainants
marcus.nussbaum@gmail.com

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANTS' STATUS REPORT** upon Respondents' Counsel at the following address:

Nixon Peabody LLP
Attn: Eric C. Jeffrey, Esq.
799 9th Street NW, Suite 500
Washington, DC 20001-4501

by first class mail, postage prepaid, (email service precluded by agreement).

A handwritten signature in black ink, appearing to read 'Marcus A. Nussbaum', is written over a horizontal line.

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
Attorney for Complainants
marcus.nussbaum@gmail.com

Dated: September 9, 2016 in Brooklyn, New York.

Marcus A. Nussbaum

Subject: FW: Motion to Seal

From: Jeffrey, Eric [mailto:ejeffrey@nixonpeabody.com]

Sent: Friday, September 9, 2016 12:42 PM

To: Marcus Nussbaum

Cc: Lesk, Jeffrey; Vohra, Anjali

Subject: RE: Motion to Seal

Dear Mr. Nussbaum

Enough is enough. I am henceforth blocking your emails and ask Mr. Lesk and Ms. Vohra to do the same. You may communicate with us through the Office of the Secretary.

By including Mr. Lesk, you have removed your nonsense even further from the litigation protection against defamation claims.



Eric C Jeffrey

Counsel

ejeffrey@nixonpeabody.com

T 202-585-8215 | C 703-919-3374 | F 855-782-6662

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Marcus A. Nussbaum

Subject: FW: Motion to Seal

From: Marcus Nussbaum [mailto:marcus.nussbaum@gmail.com]

Sent: Friday, September 9, 2016 1:17 PM

To: Jeffrey, Eric

Cc: Lesk, Jeffrey; Vohra, Anjali; secretary@fmc.gov

Subject: Re: Motion to Seal

Mr. Jeffrey,

On this point, we at last finally agree. Enough definitely is enough, and has been so for quite some time.

Accordingly, we gladly accept your proposal that counsel for the parties hereto, including your "coordinating counsel" Mr. Werner refrain from emailing each other directly for the pendency of this litigation, and that all further necessary communications in this matter be sent through the Office of the Secretary, effective immediately.

In closing, and to ensure that you do not renege on this agreement, we shall advise the Presiding Officer as to this change in the status of litigation of this matter set forth above.

Regards,

Marcus A. Nussbaum, Esq.

P.O. Box 245599

Brooklyn, NY 11224

Tel: 888-426-4370

Fax: 347-572-0439

<http://www.nussbaumlawfirm.com/>

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